

Sarju @ Sarju Prasad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · WRIT - C No. 38602 of 2019 · **Writ disposed; petitioner to appear before Executive Engineer; speaking final order; coercive action stayed; Section 127 appeal reserved.**

HEADNOTE

Writ seeking certiorari against an undated electricity recovery citation of Rs 3,20,229 plus charges, alleging coercive recovery without hearing and without following the U.P. Electricity Supply Code, 2005, disposed of without examining those allegations. The petitioner was directed to appear on 12 December 2019 before the Executive Engineer with objections and evidence; a speaking and reasoned final order was to follow within four weeks; coercive action was stayed for seven weeks or until disposal of the objection; an appeal under Section 127 of the Electricity Act, 2003 was reserved against that final order; the citation would revive if the petitioner failed to appear.

FACTUAL SUMMARY

Sarju Prasad filed a writ petition in the Allahabad High Court seeking certiorari to quash an undated recovery citation issued by the electricity authorities for Rs 2,07,874 plus further charges of Rs 1,12,355 (total Rs 3,20,229 plus recovery charges). He alleged that the respondents were taking coercive recovery steps without giving him any opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the Electricity Department were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then Section 127 appeal

HOLDING

Where a consumer challenges an electricity recovery citation for want of hearing and non-compliance with the U.P. Electricity Supply Code, 2005, the High Court may, without deciding those allegations, direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking and reasoned final order within a fixed time, stay coercive recovery in the interim, and leave any remaining grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003. ¶ 4-6

PRINCIPLE TAGS

relegation-to-section-127-appeal-on-merits-limitation-not-examined

Without examining Supply Code compliance or the quantum of the citation, the Court directed a speaking final order by the Executive Engineer and left any remaining grievance to a Section 127 appeal. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND THE MERITS OF THE UNDERLYING ASSESSMENT

The Court proceeded on a lenient view and directions without examining these allegations. ¶ 3-4